

HEADNOTE

“Art. 83(3) UPCA must be interpreted such that a valid opt out application requires that it is lodged by or on behalf of all proprietors of all national parts of a European patent.”

COURT

Court of Appeal Luxembourg

PROCEEDINGS

Action for revocation

PATENT

EP 3876490

METHODS AND APPARATUS FOR
OVERLAYING MULTI-CARRIER AND
DIRECT SEQUENCE SPREAD
SPECTRUM SIGNALS IN A
BROADBAND WIRELESS
COMMUNICATION SYSTEM

KEYWORDS

Interpretation of Art. 83(3) UPCA

validity of an opt-out

Article 83

Transitional regime

SUMMARY

The Court of Appeal Luxembourg ruled on an action for revocation. The patent at issue relates to methods and apparatus for overlaying multi-carrier and direct sequence spread spectrum signals in a broadband wireless communication system. According to the headnotes of the decision, a valid opt-out application under Article 83(3) of the UPC Agreement must be submitted by or on behalf of all proprietors holding rights in all national parts of a European patent.